

Court No. - 39

Case :- WRIT - C No. - 23228 of 2020

Petitioner :- M/S Ganesh Laxmi Rice Mill

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Arun Mishra

Counsel for Respondent :- Mahboob Ahmad

Hon'ble Naheed Ara Moonis,J.

Hon'ble Dinesh Pathak,J.

Learned Standing Counsel as well as Sri Aman Sharma, Advocate holding brief of Sri Ajay Singh, learned counsel for respondent nos.2 and 3 submitted that they have not been served with the copy of writ petition.

Learned counsel for petitioner is directed to serve the copies of writ petition to learned counsel for respondent nos.1 to 3 during the course of the day.

Let the matter be placed on 18.01.2021 in the additional cause list.

Order Date :- 7.1.2021

Manish Himwan

Case :- WRIT - C No. - 23228 of 2020

Petitioner :- M/S Ganesh Laxmi Rice Mill

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Arun Mishra

Counsel for Respondent :- Mahboob Ahmad

Hon'ble Naheed Ara Moonis,J.

Hon'ble Dinesh Pathak,J.

Heard learned counsel for the petitioner, Sri Ajay Singh, learned counsel for respondent no. 2 and Sri Anand Bhaskar Srivastava, learned counsel for the respondent no. 3.

Instant writ petition has been filed with the following relief :

"(i) Issue a writ, order or direction in the nature of mandamus commanding respondent no. 3 to decide the Misc. Application dated 07.09.2020 of petitioner forthwith.

(ii) Issue a writ, order or direction in nature of mandamus commanding respondent no. 3 to decide the complaint no. 371/20 within given time frame.

(iii) Issue a writ, order or direction holding provision of Clause 3.3(i) & Clause 3.2(iv)(c) of the "The Electricity Regulatory Commission (CGRF & Electricity Ombudsman) Regulation, 2007" ultra virus Article 13 of the Constitution of India.

(iv) Issue a writ, order or direction holding provision of Clause 3.12 of "The Electricity Regulatory Commission (CGRF & Electricity Ombudsman) Regulation, 2007" inconsistent with Section 103(2) of the Electricity Act, 2003."

Learned counsel for the petitioner is only pressing prayer nos. (i) & (ii) and submits that misc. application dated 7.9.2020, which has been registered as complaint no. 371/20, moved by the petitioner before the Consumer Grievance Redressal Forum under clause 7.10 of the U.P. Electricity Supply Code, 2005 is still pending for consideration.

Learned counsel for the respondent nos. 2 & 3 submit that some reasonable time may be allowed to the respondent no. 3 to consider and decide the complaint of the petitioner.

Considering the facts and circumstances of the case and without entering into the merit of the case, writ petition is disposed of with a direction to the respondent no. 3 - Consumer Grievance Redressal Forum in accordance with the UPREC (Consumer Grievance Redressal Forum & Ombudsman) Regulations, 2003 to consider and decide the complaint no. 371/20 of the petitioner in accordance with law expeditiously, preferably within a period of six weeks from the date of production of a copy of this order before it.

Order Date :- 8.2.2021

nd